INTERNATIONAL MARITIME ORGANIZATION

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# REPORT OF THE FACILITATION COMMITTEE ON ITS FORTY-NINTH SESSION

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## 1 INTRODUCTION – ADOPTION OF THE AGENDA

1.1 The forty-ninth session of the Facilitation Committee was held from 10 to 14 March 2025, chaired by Mr. Watchara Chiemanukulkit (Thailand). The Vice-Chair of the Committee, Mr. Mohamed AlKaabi (United Arab Emirates), was also present.

1.2 The session was attended by Member States and Associate Members, representatives from specialized agencies, observers from intergovernmental organizations with agreements of cooperation, and observers from non-governmental organizations in consultative status, as listed in document FAL 49/INF.1.

1.3 On the occasion of the sixtieth anniversary of the adoption of the FAL Convention, a special celebratory event was held in the afternoon of 10 March 2025.

### Opening address of the Secretary-General

1.4 The Secretary-General welcomed participants and delivered his opening address, the full text of which can be downloaded from the IMO website at the following link: https://www.imo.org/en/MediaCentre/SecretaryGeneral/Pages/Secretary-GeneralsSpeechesToMeetings.aspx

### Maritime incident

1.5 The Committee noted information provided by the delegation of the United Kingdom concerning the accident on 10 March 2024 when the containership **MV Solong**, which was sailing from the port of Grangemouth (United Kingdom) to Rotterdam (Kingdom of the Netherlands), collided with the product tanker **MV Stena Immaculate** while the latter was at anchor outside the port of Hull. The collision caused an explosion and both ships caught fire. Thirty-six members of the crew of the two vessels were rescued and taken ashore. However, sadly one crew member of the cargo ship was unaccounted for and the search was called off after an extensive search. The Committee further noted the statement of the delegation of the United States, as flag State of **MV Stena Immaculate**, in relation to the SAR operations provided by the United Kingdom.

### Use of hybrid meeting capabilities

1.6 The Committee noted that the plenary sessions would be conducted in person, supplemented by hybrid meeting capabilities, taking into account the relevant decisions of C 132 (C 132/D, paragraphs 17.2 and 17.3).

1.7 In this regard, the Chair recalled that, as per Article 30 of the IMO Convention, the Committee would adopt its own Rules of Procedure and, in line with the decisions of the Council, the Committee agreed as follows:

.1 as per the current Rules of Procedure of the Committee and the *Interim guidance to facilitate remote sessions of the Committees during the COVID-19 pandemic* (MSC-LEG-MEPC-TCC-FAL.1/Circ.1), adopted by the Committee at the ALCOM meeting in September 2020, for this hybrid session a Member State would be considered "present" for the purposes of rule of procedure 28(1) if they were either physically present in the Main Hall or were registered and participating remotely online using the hybrid system; and

.2 any voting by secret ballot would take place in person only.

**Adoption of the agenda and related matters**

1.8 The Committee adopted the provisional agenda (FAL 49/1) and agreed to be guided in its work, in general, by the annotations contained in document FAL 49/1/1 and by the provisional timetable (FAL 49/1/1, annex, as revised).

**Credentials**

1.9 The Committee noted that the credentials of 95 delegations attending the session were in due and proper form.

1.10 The Committee further noted the statement made by the delegation of the United States that they were under a new Administration. The United States were, therefore, reviewing their policies to ensure that any outcomes did not unduly or unfairly burden them. The United States were taking a broader policy review of all matters under the purview of this Committee and IMO, and were, thus, reserving their position on some matters discussed at this meeting. The silence of the United States did not necessarily imply tacit agreement on the matters being discussed.

1.11 During the deliberation of the Committee at this session, some delegations made statements on Wednesday, 12 March 2025 with respect to the situation in the Black Sea.

1.12 The delegation of Ukraine reported on another brutal act of aggression by the Russian Federation against civilian maritime infrastructure which occurred on the evening of 11 March when a Russian missile strike targeted the port of Odesa, resulting in the tragic loss of four Syrian seafarers, and injuries to two more individuals – one Ukrainian and one Syrian. The attack damaged the Barbados-flagged vessel **MJ Pina** which was in the process of loading wheat for export to Algeria and the Portuguese-flagged tanker **Arkos** sustained structural collateral damage. These were purely civilian vessels engaged in the lawful transport of essential goods. Furthermore, port berths and grain storage facilities sustained significant damage. The delegation of Ukraine stated further that this deliberate attack on civilian shipping and port infrastructure was a clear violation of international law and a direct threat to global food security. The continued militarization of the Black Sea by the Russian Federation endangered seafarers, disrupted trade and undermined the fundamental principles of maritime safety and freedom of navigation. The delegation of Ukraine remained steadfast in its commitment to a just and lasting peace, and urged all its partners to intensify efforts to bring an end to this war. The full text of the statement by the delegation of Ukraine is set out in annex 14.

1.13 In supporting the intervention made by the delegation of Ukraine, the delegations of Australia, Canada, France, Japan, Norway, Poland, speaking on behalf of the Member States of the European Union and the European Commission, and the United Kingdom, expressed solidarity with the victims of these attacks and extended condolences to the families and loved ones of the seafarers who had lost their lives due to the attack by the Russian Federation on the port of Odesa, and stated the following views:

.1 the attack was an unprovoked, premeditated and barbaric action against a sovereign democratic State;

.2 the Russian Federation's unprovoked and illegal and unjustified aggression against Ukraine should be condemned in the strongest possible terms;

.3 the Russian Federation's continued attacks demonstrated a blatant disregard for the principles that were fundamental to the work of the FAL Committee and the International Maritime Organization. They had caused untold damage to commercial port and shipping infrastructure, taken the lives of innocent seafarers, and disrupted crucial grain exports to developing countries;

.4 the unwavering commitment to Ukraine's sovereignty and territorial integrity, as well as to the rule of law and the spirit of collaboration that guided the efforts of this Committee, was reaffirmed; and

.5 the need to accelerate efforts towards a just and lasting peace was emphasized.

1.14 The full text of the statements made by the delegations of Australia, Canada, France, Japan, Poland and the United Kingdom, is set out in annex 14.

1.15 In response to these statements, the delegation of the Russian Federation highlighted the following points:

.1 In order to further escalate the conflict, Western countries recklessly continued to supply the Kiev regime with weapons and ammunition using civilian ships under the guise of exporting agricultural products. Port infrastructure was purposefully used for the trans-shipment and storage of all these military cargoes. Thus, vehicles of any kind used to deliver military cargo to Ukraine, as well as the places where they were stored, were legitimate targets.

.2 It was especially important to emphasize the responsibility of the shipowners who provided commercial vessels for the transportation of military cargo. This was unacceptable and irresponsible since such actions put the lives of innocent seafarers, who might not even know the nature of the cargo being transported, at fatal risk.

1.16 The Secretary-General expressed his condolences to the families of the affected seafarers and stated that geopolitical issues should not affect the innocent lives of seafarers. These incidents would have a deterrent effect on future seafarer vocations. The Secretary-General called for the redoubling of efforts to find solutions and ensure the safety of seafarers on board ships all around the world.

1.17 The Committee noted the statement made by the delegation of China in respect of the discriminatory actions planned to be executed by one Member State, motivated by its domestic political needs and abusing its domestic laws against China. These actions include imposing high port fees on Chinese shipping companies, Chinese-built vessels, and operators of any fleet comprised of at least one Chinese-built vessel or who had ordered new vessels from a Chinese shipyard, upon the entrance of the vessels to ports of the said Member State. These actions would constitute a sheer violation of the IMO Convention, which encouraged the removal of discriminatory actions and unnecessary restrictions by Governments affecting shipping engaged in international trade so as to promote the availability of shipping services to the commerce of the world without discrimination. The statement of the delegation of China is set out in annex 14.

## 2 DECISIONS OF OTHER IMO BODIES

2.1 The Committee noted the information provided in documents FAL 49/2 and FAL 49/2/2 (Secretariat), in relation to the outcome of MEPC 81, LEG 111, MSC 108, TC 74, C 132, MEPC 82, C 133 and MSC 109 on matters of relevance to its work and decided to consider the various issues which warranted action by the Committee under the relevant agenda items.

**Revised descriptions of Maritime Services in the context of e-navigation**

2.2 The Committee noted that MSC 108 had approved MSC.1/Circ.1610/Rev.1 on *Descriptions of Maritime Services in the context of e-navigation*, including the modifications agreed by FAL 48 concerning Maritime Service 8 (Vessel shore reporting).

**List of publications relevant to the ship/port interface (FAL.6/Circ.14/Rev.1)**

2.3 The Committee noted that MSC 108, having considered the new publications related to best practice guidance released by ICS in 2023 and 2024, including the *Engine Room Procedures Guide* (second edition), *Guidelines on the Application of the ISM Code* (fifth edition) and *Tanker Safety Guide (Liquefied Gas)* (fourth edition), had agreed to inform the FAL Committee of these new publications with a view to including them when revising the *List of publications relevant to the ship/port interface* (FAL.6/Circ.14/Rev.1).

2.4 The Committee instructed the Secretariat to replace the references of the publications with the new editions, and approved the revised version of the *List of publications relevant to the ship/port interface* (FAL.6/Circ.14/Rev.2).

2.5 The Committee also instructed the Secretariat to carry out a review of FAL.6/Circ.14/Rev.2 in conjunction with other interested organizations as appropriate, and to inform FAL 50 accordingly.

**Rules of Procedure of the Committee**

2.6 The Committee noted that C 133 had:

.1 invited the Secretariat to translate the Rules of Procedure into the other five official languages following the English text;

.2 requested the Secretariat to provide more information on the term "Determinations" in existing rule 35 at a future session;

.3 endorsed the Working Group's recommendation to add the reference to the *Guidance on the use of IMO hybrid meeting capabilities* to the *Organization and method of work of the Council*, at a future session;

.4 endorsed the Working Group on the Rules of Procedure's recommendations to develop procedures on remote voting and to consider whether such procedures should be set in the document on the *Organization and method of work of the Council* or in separate guidelines and to invite submissions on this matter at a future session;

.5 approved the Rules of Procedure of the Council, as amended, (C 133/D, annex 1), and authorized the Secretariat to make the consequential renumbering of the Rules and circulate them as a Council circular;

.6 approved the Council resolution on *Criteria and procedures for live-streaming to the public of IMO Council plenary meetings* (C 133/D, annex 2); and

.7 invited the other organs of the Organization to consider the amendments to the Rules of Procedure with a view to harmonizing their respective rules of procedure with the rules of the Council to the extent possible.

2.7 The Committee also noted that MSC 109 had been informed that the Secretariat, further to the decisions made by C 133, would submit a document to each committee containing draft amendments to their respective rules of procedure, specifically the changes to voting and hybrid capabilities, for their consideration.

2.8 The Committee considered document FAL 49/2/1 (Secretariat), which contained a proposal for a revision of the Rules of Procedure of the Facilitation Committee, in line with the amendments to the Rules of Procedure of the Council approved at C 133 (circulated as Council.1/Circ.1) and with additional changes suggested by the Secretariat, and document FAL 49/2/3, commenting on document FAL 49/2/1, with proposals to amend the revised rule 37, related to the meaning of "Members present and voting" and "Members present".

2.9 The Committee supported the amendments to the Rules of Procedure proposed in document FAL 49/2/1 (Secretariat) and, in respect of the amendments proposed on rule 37 in document FAL 49/2/3, some delegations supported the proposal for practical reasons. However, a number of delegations expressed caution that the proposed text on rule 37 should not overcomplicate the procedure, and should contain essential aspects for the correct interpretation of the phrases "Members present and voting" and "Members present". The Committee further agreed to issue the Rules of Procedure by means of a FAL circular.

2.10 The delegation of Germany expressed the view that the proposed amendments in document FAL 49/2/1 were identical on the content to the Rules of Procedure approved by the Council, but presented in different rules. The delegation of Germany further expressed the view that it did not support the proposal to delete the words "participating either in person or remotely through the hybrid system" and, therefore, could not support the proposal for a new paragraph 5, proposed in document FAL 49/2/3, because the deletion would lead to confusion regarding remote participation. In addition, consistency with the Rules of Procedure of the Council would no longer be possible.

**Establishment of the Expert Group on Rules of Procedure and Method of Work of the Facilitation Committee**

2.11 Having considered the above-mentioned matters, the Committee established the Expert Group on Rules of Procedure and Method of Work of the Facilitation Committee and instructed it to finalize the Rules of Procedure as proposed in document FAL 49/2/1 and taking into account the proposal contained in document FAL 49/2/3 on rule 37 and the comments made and decisions taken in plenary, and prepare the cover of the FAL circular.

**Consideration of the report of the Expert Group**

2.12 Having considered the relevant part of the Expert Group's report (FAL 49/WP.8), the Committee noted the discussion of the Expert Group on rule 37.1, where the Expert Group acknowledged that there were two distinct terms that had specific meanings: "Members present" and "Members present and voting". For the purpose of the rules in the IMO Convention, "Members present" referred to votes requiring a two-thirds majority whereas "Members present and voting" referred to votes requiring a simple majority. Based on this understanding, and to ensure that Members participating through the hybrid system in either voting situation would be able to vote, the Group agreed to delete the terms "participating either in person or remotely through the hybrid system" from the definition of "Members present" in paragraph 1 and insert a new sentence reading "Members are considered present whether they are participating in person or remotely through the hybrid system" to ensure that this sentence applied to both "Members present and voting" and "Members present".

2.13 The Committee approved the draft Rules of Procedure of the Facilitation Committee, as amended, as set out in annex 1, and authorized the Secretariat to circulate them as a FAL circular and to effect any minor editorial corrections that might be required.

2.14 The Committee invited the Council to revise rule 40 of its Rules of Procedure to take into account the decision on rule 37 of the Rules of Procedure of the Facilitation Committee and the discussion reflected in paragraph 2.12.

2.15 The Committee agreed to inform the other committees to harmonize their relevant rules on "Members present and voting" and "Members present".

**Greater public access to information**

2.16 The Committee recalled the decisions of FAL 43 concerning measures to allow greater public access to information at IMO (FAL 43/20, paragraph 2.3).

2.17 In this regard, the Committee also recalled the decision of FAL 48 that all Secretariat documents for the present session would be made publicly available prior to the meeting, and agreed to revisit the matter when considering the items to be included in the agenda for FAL 50 (see paragraph 19.16).

## 3 CONSIDERATION AND ADOPTION OF PROPOSED AMENDMENTS TO THE CONVENTION

3.1 The Committee noted that no amendments to the annex to the Convention had been proposed for consideration or formal adoption at this session.

## 4 AMENDMENTS TO THE FAL CONVENTION TO INTRODUCE MANDATORY REPORTING OF THE API AND BRI/PNR FOR MARITIME TRANSPORT

4.1 The Committee recalled that FAL 48 had:

.1 agreed to postpone the inclusion of the BRI/PNR data set in the IMO Compendium to a later stage, when experience had been gained through the pilots under way by WCO and CLIA;

.2 approved an expanded IMO data set on "Advance Passenger Information (API)" with crew and passengers' vehicle information; and

.3 agreed to include an output in the 2024-2025 biennial agenda and the provisional agenda for FAL 49 on "Amendments to the FAL Convention to introduce mandatory reporting of the API and BRI/PNR for maritime transport", with a target completion year of 2025.

4.2 The Committee considered document FAL 49/4 (Australia et al.), proposing the inclusion of the declarations for Advance Passenger Information (API) and Booking and Reservation Information (BRI)/Passenger Name Record (PNR) data for cruise ships and other maritime means of transport in the FAL Convention.

4.3 On the proposed amendments to include Advance Passenger Information (API) in the FAL Convention, the Committee agreed to include API as a new declaration in the FAL Convention, including a transition period to provide flexibility to Member States and industry to adapt their systems, before API declaration replaced the existing Crew List and Passenger List declarations.

4.4 The Committee also noted, inter alia, the following general views:

.1 the data that might be required to be collected prior to sailing could specifically hamper short international voyages, as defined in SOLAS regulation III/ 3.22;

.2 the new declaration on API should not include the information related to the crew; and

.3 seafarers could use identification documents instead of passports, and the particularities of the documents of the seafarers were not considered in the WCO guidelines on Advance Passenger Information (API) and Booking Reservation Information (BRI) for Cruise Ship Travel;

.4 seafarers should never be considered a security threat;

.5 no practical challenges had been identified in adding crew information, and thus the crew information should be retained as originally proposed in FAL 49/4. If there were compelling needs to exclude the crew information from practical perspective, such issues could be further examined in the Working Group on Facilitation Instruments (to be established);

.6 the proposal should consider that there were different types of passenger ships, including ferries, with different particularities in their operation;

.7 during the transition period of the new API declaration and the Crew List and Passenger List declarations, the shipping industry might be requested to provide the API declaration to the departing country and the other declarations to the arrival country, and this might cause double reporting and impose an administrative burden on shipping operators; and

.8 utilization of API was effective in terms of risk management at border agencies, and it contributed to both facilitation of passenger flow and reinforcement of border control. Stipulation of submission of API in the early stage as international standard under the FAL Convention must be beneficial both for public and private sectors.

4.5 On the proposed amendments to include Booking and Reservation Information (BRI)/Passenger Name Record (PNR) in the FAL Convention, the Committee agreed to submit the proposal to the Working Group on Facilitation Instruments for further consideration, using option 1 of document FAL 49/4 as the basis for discussion.

**Establishment of the Working Group on Facilitation Instruments**

4.6 Having considered the above-mentioned matters, the Committee established the Working Group on Facilitation Instruments and instructed it to discuss further the proposal and prepare the draft amendments to the annex of the FAL Convention, based on document FAL 49/4.

4.7 During the session, the Working Group on Facilitation Instruments informed the Committee that it was not possible to finalize the amendments to the annex to the FAL Convention on API and BRI/PNR at this session. The Committee was aware that it had already established three correspondence groups. However, taking into account the urgency of the matter under consideration, and in accordance with paragraph 5.13 of the Committee's method of work, the Committee agreed to establish a correspondence group to work intersessionally. Subsequently, the Committee agreed to establish the Correspondence Group on Amendments to the Annex of the FAL Convention on API and BRI,[1] and instructed the Working Group to prepare the terms of reference of the Correspondence Group.

**Report of the Working Group**

4.8 Having considered the relevant part of the Working Group's report (FAL 49/WP.5), the Committee approved it in general and took action as indicated below.

4.9 The Committee agreed not to use the term "Passenger Name Record data (PNR)", since it was specific to air transport. Consequently, the name of the output should be amended accordingly, deleting the reference to PNR.

4.10 The Committee noted the progress made in the draft amendments to the annex to the FAL Convention related to include Advance Passenger and Crew Information (API) and Booking and Reservation Information (BRI) and agreed to extend the target completion year to 2026.

***Terms of reference of the Correspondence Group on Amendments to the Annex of the FAL Convention on API and BRI***

4.11 The Committee agreed to the terms of reference of the Correspondence Group on Amendments to the Annex of the FAL Convention on API and BRI, as set out below:

.1 prepare the amendments to the annex of the FAL Convention, together with the associated draft FAL resolution, based on document FAL 49/4, option 1, and annex 1; and

.2 submit a report in time for consideration at FAL 50.

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## 5 AMENDMENTS TO THE FAL CONVENTION TO REVIEW THE PROVISIONS OF A KEY WORKER DURING A PUBLIC HEALTH EMERGENCY OF INTERNATIONAL CONCERN

5.1 The Committee recalled that FAL 48 had agreed to include an output in the 2024-2025 biennial agenda and the provisional agenda for FAL 49 on "Amendments to the FAL Convention to review the provisions of a key worker during a public health emergency of international concern", with a target completion year of 2026.

5.2 The Committee considered documents FAL 49/5 (Bahamas et al.) proposing amendments to Standard 6.22 and Recommended Practice 6.24 of the FAL Convention, with the view to aligning IMO and ILO provisions on key workers to enhance the rights and protections for key workers during public health emergencies, and FAL 49/5/1 (United Arab Emirates), commenting on document FAL 49/5.

5.3 The Committee noted, inter alia, the following general views:

.1 the right of transport workers to be protected to the greatest extent possible;

.2 there was no definition of key workers in any ILO instruments, only in one ILO report;

.3 the text should provide clear interpretation to avoid fragmentation of the assistance provided to key workers;

.4 replacing existing Standard 6.22 with Recommended Practice should be avoided as it would mean downgrading existing instruments in the FAL Convention; and

.5 the recognition of seafarers as key workers should be consistent in the ongoing work done by IMO, WHO and ILO, and the proposal on key workers would be discussed at the fifth meeting of the Special Tripartite Committee to be held from 7 to 11 April 2025.

### Instructions to the Working Group on Facilitation Instruments

5.4 Subsequently, the Committee requested the Working Group on Facilitation Instruments to discuss further the proposals in documents FAL 49/5 and FAL 49/5/1 and prepare the draft amendments to the annex of the FAL Convention.

### Report of the Working Group

5.5 Having considered the relevant part of the Working Group's report (FAL 49/WP.5), the Committee approved it in general and took action as indicated below.

5.6 The Committee agreed to maintain Standard 6.22 with the potential inclusion of further explanation in the Explanatory Manual to the FAL Convention to reflect the meaning of the term "Key Workers" as currently existed in Standard 6.22. The Committee noted that the work on the review of the Explanatory Manual to the FAL Convention would start once the Committee adopted the amendments to the annex to the FAL Convention, i.e. FAL 51, in 2027.

***Proposal to establish a joint ICAO/ILO/IMO/WHO working group to discuss the issue of the protection of "key workers" during health emergencies of international concerns***

5.7 On the proposal of the Working Group to establish a joint ICAO/ILO/IMO/WHO working group to discuss the issue of the protection of "key workers" during health emergencies of international concerns in relation to the FAL and MLC, the Committee agreed that more information was needed to take a decision, and requested the Secretariat to liaise with the Secretariats of ICAO, ILO, IMO and WHO to explore how this modality of working group could be established, e.g. how the joint working group would be set up and how it would work, including aspects such as how the joint working group would function, what the terms of reference of the joint working group would be, and whether an intersessional working group would be needed. The outcome of this consultation should be reported to FAL 50.

***Approval of amendments to the annex to the FAL Convention on the provision of vaccinations to ship's crew in Recommended Practice 6.24***

5.8 The Committee approved the amendments to the annex of the FAL Convention, as set out in annex 2, for circulation in accordance with article VII(2)(a) of the Convention with a view to adoption at FAL 50 and instructed the Secretariat accordingly.

## 6 APPLICATION OF SINGLE WINDOW CONCEPT

6.1 The Committee recalled that the application of the single window concept to ship reporting in the context of the FAL Convention had been mandatory since January 2024 (i.e. Standard 1.3*quin*).

6.2 The Committee also recalled that FAL 47 had adopted resolution FAL.16(47) on *Recommended actions to accelerate the implementation of a maritime single window*, to assist Contracting Governments to the FAL Convention in fulfilling their obligations to implement mandatory single window systems by 1 January 2024, and approved a revised version of the *Guidelines for setting up a maritime single window* (MSW Guidelines) (FAL.5/Circ.42/Rev.3).

6.3 Having recalled that a GISIS module was available to collect updated information on MSW and other related single windows implemented by Member States, the Committee noted that 36 countries had completed the information in the module and encouraged Member States to complete the information in the GISIS module, compared to 24 countries in 2024, a 50% increase in one year.

**Implementation of the maritime single window (MSW) system using the IMO Generic Maritime Single Window System**

6.4 The Committee considered document FAL 49/6/1 (Antigua and Barbuda) with information on the implementation of the IMO Generic Maritime Single Window System in Antigua and Barbuda and the consequential effect on the CARICOM IMPACS Joint Regional Coordination Centre's Advance Passenger Information System and the IMO/OECS MSWS Project.

6.5 Following consideration, the Committee noted the information provided in the document and:

.1 encouraged continued collaboration between CARICOM IMPACS, OECS, Antigua and Barbuda and other Member States to enhance the regional central repository for FAL data and streamline the integration of the Electronic Ship Port Clearance Systems/Maritime Single Window Systems;

.2 recommended that Member States review and, if necessary, amend existing legislation to ensure alignment with the regional MSW integration process, focusing on simplifying data submission requirements and reducing duplication for maritime and aviation carriers; and

.3 encouraged IMO and CARICOM Member States to continue allocating resources for technical assistance and capacity-building to support the implementation of maritime single window systems in OECS and other CARICOM Member States, ensuring timely and effective adoption.

**Proposal on amendments to the Guidelines for setting up a maritime single window**

6.6 The Committee considered document FAL 49/6/2 (China) with a proposal to amend the *Guidelines for setting up a maritime single window* (FAL.5/Circ.42/Rev.3) by introducing an information verification function within the maritime single window.

6.7 During the ensuing discussion, the Committee noted the following views:

.1 the verification function within the maritime single window enhanced data quality, improved efficiency and alleviated administrative burdens, but it was essential that such a mechanism was not in contradiction with a model of a decentralized single window architecture, especially regarding data storage practices;

.2 storage of the information for reuse or statistical purposes had a number of issues, such as data protection and the cost of storage, that would require further discussion; and

.3 enhancing data validation mechanisms could significantly improve efficiency and minimize delays in ship clearance procedures.

**Establishment of the Working Group on Electronic Business**

6.8 Having considered the above-mentioned matter, the Committee established the Working Group on Electronic Business and instructed it, taking into account document FAL 49/6/2 and the comments made and decisions taken in plenary, to prepare a revised version of the *Guidelines for setting up a maritime single window* (FAL.5/Circ.42/Rev.3) if deemed appropriate.

**Report of the Working Group**

6.9 Having considered the relevant part of the Working Group's report (FAL 49/WP.6), the Committee approved the *Revised guidelines for setting up a maritime single window* (FAL.5/Circ.42/Rev.4).

**ASYHUB Maritime: a Digital Platform for the IMO Compendium integrated with ASYCUDAWorld**

6.10 The Committee considered document FAL 49/6/3 (UNCTAD), presenting the digital platform ASYHUB Maritime, developed by UNCTAD, a pilot project that might be of interest to Member States to comply with the requirement to implement a single window by January 2024.

6.11 One delegation informed the Committee that it had implemented ASYHUB Maritime platform very satisfactorily in one of its ports and was considering extending it to all ports in the country. The delegation expressed its support for the work of UNCTAD.

6.12 Following consideration, the Committee noted the information provided in the document and, in particular, the intention of UNCTAD to implement the provisions of the IMO *Guidelines for the prevention and suppression of the smuggling of wildlife on ships engaged in international maritime traffic* (FAL.5/Circ.50) through the implementation of information exchanges between ASYHUB Maritime and eCITES in the document.

**Instructions to the Working Group on Electronic Business**

6.13 The Committee agreed to instruct the Working Group on Electronic Business to consider document FAL 49/6/3 and provide recommendations to the Committee on how to utilize the UNCTAD system and on the next steps.

**Report of the Working Group**

6.14 Having considered the relevant part of the Working Group's report (FAL 49/WP.6), the Committee invited UNCTAD to contact the IMO Secretariat for advice on the alignment of ASYHUB Maritime with IMO standards (i.e. FAL Convention, IMO Compendium).

6.15 The Committee noted further the discussion on the ASYHUB system and invited UNCTAD to participate in the EGDH to increase understanding of the FAL Convention requirements in terms of data exchange and of the IMO Compendium.

**Release of the joint IAPH and World Bank 2024 executive edition of Port Community Systems – Lessons from Global Experience and the launch of a new portal**

6.16 The Committee considered the information provided in document FAL 49/6, regarding the release of the joint IAPH and World Bank 2024 executive edition on Port Community Systems – Lessons from Global Experience and the launch of a new portal.

6.17 During consideration, one delegation emphasized and supported the need for robust capacity-building initiatives to support developing economies in establishing and optimizing Port Community Systems infrastructure.

6.18 Following consideration, the Committee noted:

.1 the IAPH and World Bank executive edition report on "Port Community System – Lessons from Global Experience";

.2 the World Bank portal of Port Community Systems and recalled that the link to the portal was provided in the document; and

.3 the call for capacity-building and cooperation in supporting States to implement Port Community Systems.

**Experiences of implementation of the maritime single window**

***Enhancing the Brazilian container port facilities using a regulatory approach***

6.19 The Committee noted the information provided in document FAL 49/INF.2 containing a comprehensive overview of Brazil's efforts to improve standards and regulations for container port facilities, with a focus on digitalization and implementation of the maritime single window concept.

***Information about the Egyptian Maritime Single Window (EGMSW)***

6.20 The Committee noted the information provided in document FAL 49/INF.3 about the Egyptian Maritime Single Window (EGMSW) helping the optimization of shipping services related to vessels' arrival, departure and stay in Egyptian ports.

***Document on Malaysia's progress and strategies towards greater efficiency in ports through implementation of the Malaysia Maritime Single Window***

6.21 The Committee noted the information provided in document FAL 49/INF.4, highlighting the Malaysia Maritime Single Window (MMSW) as a transformative initiative designed to enhance port efficiency and elevate Malaysia's global maritime competitiveness.

## 7 REVIEW AND REVISION OF THE IMO COMPENDIUM ON FACILITATION AND ELECTRONIC BUSINESS, INCLUDING ADDITIONAL E-BUSINESS SOLUTIONS

**Funding of the IMO Compendium on Facilitation and Electronic Business**

7.1 When considering the project of the IMO Compendium, the Committee recalled that:

.1 FAL 48 had approved a new version of the IMO Compendium on Facilitation and Electronic Business (FAL.5/Circ.53) and that annual costs of the project on the IMO Compendium, which amounted to €50,660.00 in 2024, had been provided by Finland, Germany, the Kingdom of the Netherlands and the Port of Rotterdam;

.2 the costs for the project on the IMO Compendium for 2025 amounted to €52,020.00, and Germany and the Port of Rotterdam had kindly donated funds (€15,000 and €5,000, respectively); and

.3 the funds supported the various costs associated with the maintenance and extension of the Compendium, including the use of specialized software to manage data models, modelling work to extend and update the reference model, and the maintenance and update of the HTML and Excel versions of the Compendium publication.

7.2 The delegation of the United Arab Emirates announced the donation of $US20,000 in supporting the project of the IMO Compendium.

7.3 The Committee expressed appreciation to the sponsors for their support to the project on the IMO Compendium in 2024 and 2025, encouraged other Member States and international organizations to provide funds for the project and invited them to contact the Secretariat for this purpose or for any clarification needed.

**Outcome of the review and assessment of the IMO Compendium on Facilitation and Electronic Business**

7.4 The Committee considered document FAL 49/7/1 (Secretariat) providing information on the outcome of the review and assessment of the IMO Compendium carried out by an independent expert and providing recommendations on the way forward.

7.5 One delegation expressed the view that the work carried out by the Committee on the maintenance and updating of the IMO Compendium was the cornerstone of the digitalization strategy by the Organization; the outcome of the assessment and review of the IMO Compendium reflected that more experts on semantic data modelling of Member States were needed to accomplish this work.

7.6 Having considered the above-mentioned matters, the Committee noted the information provided in the document.

**Reports of the tenth and eleventh meetings of the Expert Group on Data Harmonization (EGDH)**

7.7 The Committee recalled that EGDH 10 had met from 15 to 19 April 2024 and EGDH 11 had met from 4 to 18 October 2024.

7.8 The Committee recalled further that FAL 48 had approved:

.1 an updated priority list of data sets to prioritize the work of EGDH; and

.2 the terms of reference of EGDH.

7.9 The Committee noted with appreciation the reports of EGDH (FAL 49/7) and, in particular, the work carried out by its Chair, Mr. Mikael Renz (Sweden), and the participants of the Group.

7.10 Having considered document FAL 49/7, the Committee approved the reports of EGDH 10 and EGDH 11 in general, and agreed to consider the actions requested grouped by topics.

***Collaboration with data standards organizations***

7.11 The Committee, in relation to the collaboration with data standards organizations, noted the areas of ongoing collaboration with IHO (FAL 49/7, paragraphs 3.1 and 3.6) and considered how to strengthen the interaction between IMO and the relevant data standards organizations to facilitate the collaboration and joint work related to the digitalization of maritime transport (FAL 49/7, paragraph 3.5):

7.12 Following consideration, the Committee agreed to:

.1 take into account the collaboration with data standards organizations during the discussion on the digitalization strategy under agenda item 8; and

.2 request the Working Group on Electronic Business to consider how to strengthen the interaction between IMO and the relevant data standards organizations to facilitate the collaboration and joint work related to the digitalization of maritime transport and to provide recommendations to the Committee.

***Information to other IMO bodies about the work on the IMO Compendium***

7.13 The Committee, in relation to informing other IMO bodies about the work on the IMO Compendium, agreed to inform MEPC and MSC and relevant sub-committees about the relevant new IMO data sets included in the IMO Compendium (FAL 49/7, paragraph 3.2).

***High-level business process flows and descriptions for each data set in the IMO Compendium***

7.14 The Committee, having recalled that EGDH was instructed to provide further guidance on the use and purpose of the IMO Compendium, agreed to:

.1 establish a Correspondence Group to Support the Drafting and Development of High-level Business Process Flows and Descriptions for Each Data Set in the IMO Reference Model,[2] as described in appendix A of EGDH 11/13 (FAL 49/7, paragraph 3.9) and requested the Working Group on Electronic Business to prepare the draft terms of reference of the Correspondence Group; and

.2 inform NCSR about the work of the Correspondence Group, if established, taking into account the link with the Maritime Services in the context of e-Navigation (FAL 49/7, paragraph 3.10).

***Message implementation guide on just-in-time data set***

7.15 The Committee, in relation to the just-in-time data set, having recalled that EGDH was instructed to provide further guidance on the use and purpose of the IMO Compendium, considered whether to include the message implementation guide in the annex of EGDH 11/9 in the *Guidelines for harmonized communication and electronic exchange of operational data for port calls* (FAL.5/Circ.52) as an addendum (FAL 49/7, paragraph 3.7).

7.16 Following consideration, the Committee agreed to refer the annex of EGDH 11/9 to the Correspondence Group to develop high-level business process flows and descriptions for each data set, to harmonize the work on the guidance on the IMO Compendium.

***Recommendations on the IMO Compendium***

7.17 The Committee, having recalled the previous consideration of document FAL 49/7/1 (paragraphs 7.4 to 7.6), noted the recommendations to improve the IMO Compendium publication and outreach (FAL 49/7, paragraph 3.11) and that EGDH would continue considering the recommendations of the IMO Compendium assessment in the following meetings and would keep the document EGDH 11/13 in the agenda of the next meetings (FAL 49/7, paragraph 3.12).

***New version of the IMO Compendium***

7.18 Regarding the new version of the IMO Compendium and the new IMO data sets, the Committee had six documents for its consideration, compiling the finalized data sets resulting from the work of EGDH and the modelling team:

.1 FAL 49/7 (Secretariat), paragraphs 4.1 to 4.5: Reports of EGDH 10 and 11;

.2 FAL 49/7/3 (Singapore, BIMCO, ISO, IPCSA) on the IMO data set on Electronic Bunker Delivery Note;

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.3 FAL 49/7/4 (Singapore, BIMCO, ISO, UNECE, IPCSA) on the IMO data set related to the Electronic Bill of Lading;

.4 FAL 49/7/5 (Singapore, BIMCO, ISO, UNECE, IPCSA) on the IMO data set on Transport of Dangerous Goods;

.5 FAL 49/7/6 (Republic of Korea, Singapore, BIMCO, ISO, IPCSA) on the IMO data set on Container Inspection Programme; and

.6 FAL 49/7/7 (Singapore, BIMCO, ISO, IPCSA) on the IMO data set on Fuel Consumption and CII reporting.

7.19 The Committee also noted that, to facilitate its review, the Secretariat had prepared document FAL 49/WP.9, which provided the new draft version of the IMO Compendium in both HTML and MS Excel publication formats.

7.20 Following consideration, the Committee agreed to forward documents FAL 49/7/3, FAL 49/7/4, FAL 49/7/5, FAL 49/7/6, FAL 49/7/7 and FAL 49/WP.9 to the Working Group on Electronic Business for detailed review with a view to approving a new version of the Compendium.

7.21 Regarding the "IMO data set for Fuel Oil Consumption and CII Reporting", the Committee endorsed the Group's recommendation to include the data set in the IMO Compendium with square brackets to mark the data set as work in progress, but to make this work visible to all stakeholders for early adoption and to show that harmonization at international level had already taken place at IMO (FAL 49/7, paragraphs 3.3).

7.22 Regarding the additional data elements related to "Transport of Dangerous Goods", the Committee noted the discussion on additional reporting on dangerous goods in ports and, having considered whether the FAL Convention should be amended to include additional data elements related to the safe transport of dangerous goods in the Dangerous Goods Manifest (FAL Declaration 7) (FAL 49/7, paragraphs 3.4), agreed to invite Member States and interested organizations to submit proposals to the Committee for a new output to discuss this matter.

7.23 The Committee thanked the experts of the modelling team for their contribution to the technical work of modelization, which included experts from China, the Republic of Korea, Singapore, Sweden, the European Commission, WCO, ISO, UNECE, BIMCO, IPCSA, IACS and RINA.

**Proposal for a new IMO data set to exchange weather and ocean information collected by use of voluntary observing ships**

7.24 The Committee considered document FAL 49/7/2 (BIMCO and WMO) proposing a new IMO data set to exchange weather and ocean information collected by use of voluntary observing ships.

7.25 Having considered the above-mentioned matter, the Committee agreed to include the data set in the priority list of EGDH and requested the Working Group on Electronic Business to review the priority list accordingly.

**Instructions to the Working Group on Electronic Business**

7.26 The Committee instructed the Working Group on Electronic Business, taking into account documents FAL 49/7, FAL 49/7/2, FAL 49/7/3, FAL 49/7/4, FAL 49/7/5, FAL 49/7/6 and FAL 49/7/7 and the comments made, and decisions taken in plenary, to:

.1 prepare the draft terms of reference of a correspondence group on the development of high-level business process flows and descriptions for data sets of the IMO Compendium;

.2 consider the reports of EGDH and the documents of the modelling team and finalize the new version of the IMO Compendium on Facilitation and Electronic Business and its publication for approval by the Committee;

.3 review the priority list of data sets to facilitate the identification of further needs for data sets in the Organization;

.4 review the terms of reference for EGDH; and

.5 consider how to strengthen the interaction between IMO and the relevant data standards organizations to facilitate the collaboration and joint work related to the digitalization of maritime transport and to provide recommendations to the Committee.

**Report of the Working Group**

***Terms of reference of the Correspondence Group on the Development of High-level Business Process Flows and Descriptions for Data Sets of the IMO Compendium***

7.27 The Committee agreed to the terms of reference of the Correspondence Group on the Drafting and Development of High-level Business Process Flows and Descriptions for Data Sets of the IMO Compendium, as set out below:

The Correspondence Group, taking into account comments and decisions made in plenary, and documents EGDH 11/13 and EGDH 11/9 was instructed to:

.1 review and update, if necessary, the template for high-level business process flows and descriptions, as described in appendix A of EGDH 11/13;

.2 draft and develop high-level business process flows and descriptions for each data set in the IMO Compendium; and

.3 submit a report in time for consideration at FAL 50.

***IMO Compendium***

7.28 The Committee, having considered the work of the Group, approved FAL.5/Circ.55 on *IMO Compendium on Facilitation and Electronic Business*.

7.29 The Committee instructed EGDH to consider the proposal to divide the model into logical segments, such as separating regulatory data sets from business/commercial ones, and to provide recommendations to the Committee.

***Priority list of data sets***

7.30 The Committee agreed to the revised priority list of data sets, as set out in annex 3.

***Terms of reference of EGDH***

7.31 The Committee agreed to the terms of reference of EGDH, as set out in annex 4.

***Interaction of IMO with relevant data standards organizations***

7.32 The Committee instructed EGDH to consider how to strengthen the interaction between IMO and the relevant data standards organizations to facilitate the collaboration and joint work related to the digitalization of maritime transport and to provide recommendations to the Committee at the next session.

## 8 DEVELOPMENT OF A COMPREHENSIVE STRATEGY ON MARITIME DIGITALIZATION

8.1 The Committee recalled that FAL 48 had agreed to include an output on "Development of a comprehensive strategy on maritime digitalization" in the 2024-2025 biennial agenda of the FAL Committee and the provisional agenda for FAL 49, with a target completion year of 2027, and that MSC 108 (MSC 108/20, paragraph 2.16) and MEPC 82 (MEPC 82/17, paragraph 14.10) had agreed to become associated organs to this output.

8.2 In this connection, the Committee had for its consideration the following documents:

.1 FAL 49/8 (IACS) providing an overview of technologies, challenges, and considerations to take into account when developing an IMO digitalization strategy and including a number of recommended activities to different committees; and

.2 FAL 49/8/1 (China et al.) proposing an outline of a draft strategy that would be discussed intersessionally by a correspondence group; a proposed road map to accomplish this work was also proposed.

8.3 In the ensuing discussion, the Committee noted the following views:

.1 the digitalization strategy should not become a parallel planning tool for the work of IMO or its organs and give a false indication that initiatives mentioned in the strategy were automatically approved as an output and put on the work programme of committees and sub-committees;

.2 the digitalization strategy should complement the Strategic Plan and the FAL Committee's method of work;

.3 MSC and MEPC had agreed to becoming associated organs to the digitalization strategy output, but there had been no discussion in those Committees on the workload it would entail and, considering the amount of work and approved outputs that were on the agendas of those Committees, they would have problems allocating time to work on the strategy in the near future;

.4 digitalization was key to reducing administrative burdens, efficient handling in ports and reducing the environmental footprint of ships and decarbonization by optimizing port calls;

.5 the process of developing the strategy could not be done by FAL alone but must involve all relevant committees to ensure a more harmonized approach of this Organization's work on digitalization;

.6 FAL 50 should establish a dedicated working group on comprehensive strategy on maritime digitalization;

.7 annex 3 of document FAL 49/8 introducing a number of possible specific activities should be further discussed as it was not clear how these activities would facilitate the implementation of the identified technologies;

.8 strategy should only cover the work carried out by IMO, not by other organizations;

.9 integrating robust cybersecurity measures within the strategy to safeguard digital systems and maintain the integrity of maritime operations was necessary;

.10 digital transformation presented challenges for developing countries with limited access to technological infrastructure, and the strategy should include provisions for capacity-building, technical assistance, knowledge-sharing initiatives, technology transfer, and accessibility of digital solutions to support all IMO Member States in their digitalization efforts;

.11 clear governance mechanisms, including defined roles for Member States, industry stakeholders and IMO bodies, were essential for effective implementation; and

.12 a IMO digitalization framework should be developed in close coordination with ILO instruments, reinforcing seamless data exchange on seafarer welfare, employment conditions and certification processes.

8.4 Taking into account the above views, the Committee agreed to:

.1 name the strategy "IMO Strategy on Maritime Digitalization";

.2 establish a correspondence group on the development of a comprehensive strategy on maritime digitalization[3] and request the Working Group on Electronic Business to prepare terms of reference for consideration by the Committee;

.3 request the Working Group on Electronic Business to prepare the draft work plan based on annex 2 of document FAL 49/8/1 and the progress made at this session; and

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.4 invite MEPC and MSC to encourage Member States and international organizations to join the correspondence group, to ensure the involvement of all the organizations at an early stage in the elaboration of the IMO digitalization strategy.

**Instructions to the Working Group on Electronic Business**

8.5 The Committee instructed the Working Group on Electronic Business, taking into account documents FAL 48/5/3, FAL 49/8 and FAL 49/8/1 and the comments made and decisions taken in plenary, to:

.1 prepare the draft terms of reference for a correspondence group on the development of a comprehensive strategy on maritime digitalization; and

.2 prepare the draft work plan based on annex 2 of document FAL 49/8/1 and the progress made at this session.

**Report of the Working Group**

8.6 Having considered the relevant part of the Working Group's report (FAL 49/WP.6), the Committee took action as indicated below.

8.7 The Committee, having considered the discussion in the Working Group on the challenges to ensure the involvement of MSC and MEPC in the development of the strategy given their current workloads, agreed that the development of the strategy relied on Member States and international organizations providing to the FAL Committee their input to the strategy from all perspectives including the safety and environmental protection perspectives, and invited MSC and MEPC to note the approach.

***Terms of reference of the Correspondence Group on the Development of a Comprehensive Strategy on Maritime Digitalization***

8.8 The Committee agreed to the terms of reference of the Correspondence Group on the development of the IMO Strategy on Maritime Digitalization, as set out below:

The Correspondence Group, taking into account comments and decisions made in plenary, as well as documents FAL 48/5/3, FAL 48/17, FAL 49/8 and FAL 49/8/1 is instructed to:

.1 define the scope, boundaries and deliverables of the IMO Strategy on Maritime Digitalization taking into account the IMO Strategic Plan[4] and the Committees' method of work,[5] including:

.1 identifying the digitalization initiatives across the committees within IMO;

.2 identifying existing and emerging technologies, standards and methodologies that can be used to support maritime-related digitalization processes; and

[4] Resolution A.1173(33) on *Strategic Plan for the Organization for the six-year period 2024 to 2029.*

[5] *Organization and method of work of the MSC and the MEPC and their subsidiary bodies* (MSC-MEPC.1/Circ.5/Rev.6) and *Organization and method of work of the FAL* Committee (FAL.8/Circ.1).

.3 identifying stakeholders and how to engage with them;

.2 consider how best to coordinate the work between the organs of IMO;

.3 further develop the draft IMO Strategy on Maritime Digitalization; and

.4 submit a report for consideration at FAL 50.

***Work plan on the Comprehensive Strategy on Maritime Digitalization***

8.9 The Committee approved the draft work plan for the development of the IMO Strategy on Maritime Digitalization, as set out in annex 5.

## 9 DEVELOPMENT OF JOINT FAL-LEG-MEPC-MSC GUIDELINES ON ELECTRONIC CERTIFICATES

9.1 The Committee recalled that FAL 48 had approved the new output "Development of joint FAL-LEG-MEPC-MSC guidelines on electronic certificates" for inclusion in the 2024-2025 biennial agenda of the FAL Committee and in the provisional agenda for FAL 49, with a target completion year of 2026 (FAL 48/20, paragraph 2.12), and that LEG 111 (LEG 111/17, paragraph 11.7.3), MSC 108 (MSC 108/20, paragraph 2.8.2) and MEPC 82 (MEPC 82/17, paragraph 14.8) had agreed to become associated organs.

9.2 Having recalled that MSC 108 had invited FAL 49 to prepare the joint circular for consideration at a future session of the Maritime Safety Committee, the Committee considered document FAL 49/9 providing draft joint FAL-LEG-MEPC-MSC guidelines for the use of electronic certificates prepared by the Secretariat.

9.3 The Committee agreed to refer document FAL 49/9 to the Working Group on Electronic Business to finalize the joint FAL-LEG-MEPC-MSC guidelines for the use of electronic certificates and to resolve the issues identified in square brackets.

**Instructions to the Working Group on Electronic Business**

9.4 The Committee instructed the Working Group on Electronic Business, taking into account document FAL 49/9 and the comments made and the decisions taken in plenary, to finalize the joint FAL-LEG-MEPC-MSC guidelines for the use electronic certificates.

**Report of the Working Group**

9.5 Having considered the relevant part of the Working Group's report (FAL 49/WP.6), the Committee approved the joint *Guidelines for the use of electronic certificates* (FAL-LEG-MEPC-MSC.1/Cir.1) set out in annex 6, and agreed to forward it to LEG 112, MEPC 83 and MSC 110 for concurrent approval.

## 10 REVISION OF THE GUIDELINES ON MARITIME CYBER RISK MANAGEMENT (MSC-FAL.1/CIRC.3/REV.2) AND IDENTIFICATION OF NEXT STEPS TO ENHANCE MARITIME CYBERSECURITY

10.1 The Committee recalled that MSC 108 had approved the draft revised *Guidelines on maritime cyber risk management* (MSC-FAL.1/Circ.3/Rev.3) and agreed to forward them to the FAL Committee for its concurrent approval.

10.2 The Committee recalled further that MSC 109, with regard to the proposal for next steps to enhance maritime cybersecurity:

.1 agreed on the need to further develop cybersecurity standards for ships and port facilities with the possibility of establishing a working group at the next session of the Committee pending submissions under this agenda item, taking into account the limit to the number of working groups for the next session of the Committee;

.2 invited Member States and international organizations to submit proposals on the next steps to enhance maritime cybersecurity for consideration; and

.3 agreed to extend the target completion of the output to 2026.

10.3 Having noted that no documents had been submitted to this session, and that there was a connection between this output and both the new output on "Development of a comprehensive strategy on maritime digitalization" and the new output proposal to amend the annex to the FAL Convention for safeguarding maritime single windows by introducing mandatory cybersecurity measures to be discussed under Work programme, the Committee considered the revised Guidelines approved by MSC 108, as set out in annex 1 to document MSC 108/WP.10.

10.4 Following consideration, the Committee approved the revised *Guidelines on maritime cyber risk management* (MSC-FAL.1/Circ.3/Rev.3) set out in annex 1 to document MSC 108/WP.10.

10.5 The Committee agreed to:

.1 invite Member States and international organizations to submit proposals on the next steps to enhance maritime cybersecurity for consideration at the next session; and

.2 extend the target completion of the output to 2026.

**Instructions to the Working Group on Electronic Business**

10.6 The Committee instructed the Working Group on Electronic Business, taking into account the comments made and the decisions taken in plenary, to consider how to address the next steps to enhance maritime cybersecurity, if time allowed, taking into account the development of an IMO digitalization strategy, and provide recommendations to the Committee.

**Report of the Working Group**

10.7 Having considered the relevant part of the Working Group's report (FAL 49/WP.6), the Committee noted the discussion on the identification of next steps to enhance maritime cybersecurity and endorsed the recommendation of the Group to consider the topic again at the next session when progress has been made on the IMO Strategy on Maritime Digitalization and the new output on the safeguarding of the MSW with mandatory cybersecurity measures.

## 11 MEASURES TO ADDRESS MARITIME AUTONOMOUS SURFACE SHIPS (MASS) IN THE INSTRUMENTS UNDER THE PURVIEW OF THE FACILITATION COMMITTEE

11.1 The Committee recalled that FAL 48 had approved the report of the second meeting of the Joint MSC-LEG-FAL Working Group on Maritime Autonomous Surface Ships (MASS- JWG), agreed to the recommendations made by MASS-JWG 2 and approved the revised road map on addressing MASS issues related to the FAL Convention.

**Progress in the work of other bodies with respect to MASS**

11.2 The Committee noted that LEG 111 had:

.1 considered the report of the second meeting of the Joint MSC-LEG-FAL Working Group on MASS (MASS-JWG 2) (document LEG 111/10) and taken action with regard to MASS-JWG 2 as set out in document LEG 111/17, paragraph 10.3;

.2 concurrently endorsed the terms of reference for the MASS-JWG approved by MSC 107; and

.3 approved the road map for its work on MASS, as set out in document LEG 111/17, annex 8.

11.3 The Committee noted that MSC 108 had:

.1 agreed not to develop provisions for high-speed craft in the MASS Code for inclusion in the non-mandatory Code;

.2 considered the report of the third meeting of the Joint MSC-LEG-FAL Working Group on MASS (MASS-JWG 3) (MASS-JWG 3/WP.1);

.3 noted the progress made in the MASS Working Group on the development of the draft MASS Code, which included some restructuring, moving various chapters among the three parts of the Code to ensure that each chapter of the Code was located in the right part, so as to meet the agreed purpose of the respective part;

.4 approved the revised road map for its work on MASS, as set out in document MSC 108/20, annex 16;

.5 re-established the MASS Correspondence Group; and

.6 re-established the intersessional MASS Working Group (MSC/MASS-ISWG 3) to hold its third meeting from 9 to 13 September 2024.

11.4 The Committee noted that MSC 109 had:

.1 considered the report of the third session of the intersessional Working Group (ISWG/MASS 3) (MSC 109/5), containing, in its annex, the draft International Code of Safety for Maritime Autonomous Surface Ships (MASS Code);

.2 agreed to revisit the issue of reintroduction of the term "equivalent" in conjunction with the level of safety expected from a MASS in comparison with that of a conventional ship in the draft MASS Code, after the adoption and the experience-building phase;

.3 noted the importance of acknowledging the separation of scope and remit of both organizations, i.e. IMO and ILO, and requested the IMO Secretariat to liaise with the ILO Secretariat, with a view to informing on the work related to MASS personnel in the context of labour-related matters under relevant ILO bodies;

.4 noted the information provided on regulatory revisions and outcome of MASS trials in the Russian Federation, and invited interested Member States to share their experiences with MASS trials and operations;

.5 noted the progress made on the development of the draft MASS Code, in particular the finalization of chapter 7 (Risk Assessment) in part 2, and chapter 18 (Remote Operation) in part 3; the Committee also noted the finalization of chapter 12 (Connectivity) and its subsequent relocation from part 2 to part 3, as new chapter 17*bis* in the draft MASS Code (MSC 109/WP.8, annex 1); and

.6 approved the revised road map for its work on MASS, as set out in document MSC 109/22, annex 3, including the plan to finalize and adopt the non-mandatory MASS Code by MSC 111 in May 2026, while its experience-building phase framework was expected to be developed at MSC 112; to start the development of the mandatory MASS Code in 2028, with a view to adopting it on 1 July 2030, at the latest, for entry into force on 1 January 2032; and invited FAL 49 and LEG 112 to review their respective MASS-related road maps in light of the above-mentioned agreed revision of the road map.

**Report of the Joint MSC-LEG-FAL Working Group (MASS-JWG 3/WP.1)**

11.5 The Committee, having considered document MASS-JWG 3/WP.1 (Secretariat), with the report of the third meeting of the Joint MSC-LEG-FAL Working Group on Maritime Autonomous Surface Ships (MASS-JWG), which was held from 8 to 10 May 2024, approved the report in general and, in particular:

.1 noted that, while the issue of connectivity was important to discuss, the technical aspect of connectivity was a matter outside the remit of the Joint MSC-LEG-FAL Working Group, and the discussion should take place at MSC;

.2 noted that substantive consideration on matters such as competencies, qualifications and training relating to the crew of MASS would be within the remit of MSC and the HTW Sub-Committee; and any further discussion in the Joint MSC-LEG-FAL Working Group, before the finalization of the non-mandatory MASS Code, would be premature;

.3 noted that any joint work by IMO and ILO on MASS-relevant issues would first require a concrete proposal for consideration by the relevant IMO committee(s);

.4 noted that the overriding responsibility and authority of the master could not be delegated, but certain tasks and functions of a master might be delegated;

.5 noted that the issue of a master being at the ROC, in particular when the crew was on board, was a matter for MSC to further consider;

.6 agreed to use the annex to document MASS-JWG 3/WP.1 as a reference to identify any conflict with the existing provisions for the role and responsibility of the master and those intended to be included in the MASS Code;

.7 noted that MASS-JWG 3 did not see the need to further address the concerns relating to flag State oversight over ROCs;

.8 noted that MASS-JWG 3 had agreed that there was no further work to be undertaken at this stage and concluded that any further consideration of the common issues warranted further progress on the MASS Code;

.9 noted that MASS-JWG 3 had not updated its work plan, and endorsed that the current work plan of the Group was completed; and

.10 agreed that the fourth meeting of the Joint MSC-LEG-FAL Working Group on MASS should only take place at the request of any of the three Committees, in consultation with the three Chairs.

11.6 Having considered the request of MASS-JWG 3 in paragraph 13 of document MASS- JWG 3/3/1 (China), together with the proposal of document FAL 49/11/1 (China), related to the new declaration for MASS, the Committee, having recognized the need for a declaration of MASS for reporting purposes to authorities, agreed that this discussion should not start before the work on the non-mandatory MASS Code had been completed by MSC 111 in May 2026. The Committee further agreed to revise the road map on addressing MASS issues related to the FAL Convention, to reflect the decisions of MSC 109.

11.7 The Committee noted the information provided by the Russian Federation in document FAL 49/11, with the latest amendments of MASS national legislation of the Russian Federation.

**Establishment of the Working Group on Other Facilitation Subjects**

11.8 Having considered the above-mentioned matters, the Committee established the Working Group on Other Facilitation Subjects and instructed it, taking into account document FAL 49/11/1 and the comments made and decisions taken in plenary, to revise the road map on addressing MASS issues related to the FAL Convention.

**Report of the Working Group**

11.9 Having considered the relevant part of the Working Group's report (FAL 49/WP.7), the Committee approved the revised road map on addressing MASS issues related to the FAL Convention, as set out in annex 7.

## 12 DEVELOPMENT OF AMENDMENTS TO THE REVISED GUIDELINES FOR THE PREVENTION AND SUPPRESSION OF THE SMUGGLING OF DRUGS, PSYCHOTROPIC SUBSTANCES AND PRECURSOR CHEMICALS ON SHIPS ENGAGED IN INTERNATIONAL MARITIME TRAFFIC (RESOLUTIONS FAL.9(34) AND MSC.228(82))

12.1 The Committee recalled that FAL 48 had agreed to include an output in the 2024-2025 biennial agenda and the provisional agenda for FAL 49 on "Development of amendments to the Revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (resolutions FAL.9(34) and MSC.228(82))", with a target completion year of 2027, inviting MSC to become an associated organ, an invitation that was accepted by MSC 108 (MSC 108/20, paragraph 2.16).

12.2 The Committee considered document FAL 49/12 (Belgium et al.) containing the proposal to carry out a gap analysis of the existing guidelines prior to starting the amendments to identify the topics that needed to be amended or that were missing in the existing guidelines, and containing also some recommendations that could be used for further discussion about the amendments to the guidelines based on the gap analysis.

12.3 The Committee noted, inter alia, the following general views:

.1 the guidelines should be in support of existing legislation, and the final result should be disseminated widely as the current version was not very well known;

.2 the existing framework required updates to address evolving criminal tactics, enhanced inter-agency cooperation, and harmonized international responses to maritime smuggling; and

.3 the substance of the current generic guidelines should be updated and some specific guidelines should also be developed for Governments, specifically for National Maritime Security and Facilitation Committees, ports, freight forwarders, shipping companies and other stakeholders.

**Instructions to the Working Group on Other Facilitation Subjects**

12.4 Subsequently, the Committee instructed the Working Group on Other Facilitation Subjects, taking into account document FAL 49/12 and the comments made and decisions taken in plenary, to:

.1 consider further the identified gaps and recommendations identified in document FAL 49/12, and advise the Committee as appropriate; and

.2 prepare terms of reference for a correspondence group[6] on the revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic, for consideration by the Committee.

[6] **Coordinator:**
Mr. Jan De Spiegeleer
Head of Service Ports and Intermodality
Email: jan.despiegeleer@mobilit.fgov.be
Tel: +32 474 88 68 74

**Report of the Working Group**

12.5 Having considered the relevant part of the Working Group's report (FAL 49/WP.7), the Committee noted the identified gaps and recommendations made by the Working Group for further consideration by a future Correspondence Group on the Revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (resolutions FAL.9(34) and MSC.228(82)).

***Terms of reference of the Correspondence Group on the Revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (resolutions FAL.9(34) and MSC.228(82))***

12.6 The Committee agreed to the terms of reference of the Correspondence Group on the Revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (resolutions FAL.9(34) and MSC.228(82)), as set out below:

.1 develop draft amendments to the Guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (Resolutions FAL.9(34) and MSC.228(82)), taking into account the identified gaps and recommendations and all remarks made in the plenary session during FAL 49; and

.2 submit a written report and a proposal for draft amendments to FAL 50.

12.7 The Committee invited the Maritime Safety Committee to encourage the participation of experts in the Correspondence Group on the Revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (resolutions FAL.9(34) and MSC.228(82)).

## 13 REVISION OF THE GUIDELINES ON MINIMUM TRAINING AND EDUCATION FOR MOORING PERSONNEL (FAL.6/CIRC.11/REV.1)

13.1 The Committee recalled that FAL 48 had agreed to include the new output "Revision of the *Guidelines on minimum training and education for mooring personnel* (FAL.6/Circ.11/Rev.1)" in the 2024-2025 biennial agenda of the FAL Committee and the provisional agenda for FAL 49, with a target completion year of 2025.

13.2 The Committee considered document FAL 49/13 (Bahrain et al.) containing the proposal to amend the *Guidelines on minimum training and education for mooring personnel* based on the assessment of the survey questionnaire in relation to the application of the Guidelines circulated by some interested Member States, and to adopt the revised guidelines as a FAL resolution.

**Instructions to the Working Group on Other Facilitation Subjects**

13.3 Subsequently, the Committee instructed the Working Group on Other Facilitation Subjects, taking into account document FAL 49/13 and the comments made, and decisions taken in plenary, to review in detail the amendments proposed and to finalize the draft resolution on the revised guidelines on minimum training and education for mooring personnel.

**Report of the Working Group**

13.4 Having considered the relevant part of the Working Group's report (FAL 49/WP.7), the Committee adopted resolution FAL.18(49) on *Guidelines on minimum training and education for mooring personnel related to ship/port interface*, as set out in annex 8.

## 14 UNSAFE MIXED MIGRATION BY SEA

14.1 The Committee recalled that in 2021 UNHCR had launched an initiative to reconstitute the Inter-Agency Group on Safety of Life at Sea, to discuss, plan and execute coordinated joint action and advocacy to support the prevention of dangerous journeys at sea, SAR activities, and safe disembarkation. EOSG, ICS, ILO, IMO, IOM, OHCHR, OLA and UNODC had been invited to participate in the Group.

14.2 The Committee also recalled that this Group had been renamed as "Inter-Agency Group on Protection of Refugees and Migrants Moving by Sea", to avoid confusion regarding the SOLAS Convention.

14.3 The Committee further recalled that MSC 106 had adopted resolution MSC.528(106) on *Recommended cooperation to ensure the safety of life at sea, the rescue of persons in distress at sea and the safe disembarkation of survivors*.

14.4 The Committee noted that 13 meetings of the Inter-Agency Group on Protection of Refugees and Migrants Moving by Sea had been convened to date. The meetings of the Group held since FAL 48 were on 17 September 2024, where the agencies engaged with different entities of the United States Government involved in addressing sea movements in the Caribbean, and on 23 January 2025, where the Group considered the human rights framework and mechanisms and protection at sea – the role of UN Special Procedures in the protection of refugees and migrants' maritime movements – as well as the Joint Statement "Distress at Sea: a call for a humanitarian and precautionary approach".

14.5 The Committee, having noted that MSC 109 had approved the draft MSC-FAL circular on guidelines on the recovery of deceased persons and on death after recovery and had also agreed to forward it to the Facilitation Committee for its concurrent approval, considered document FAL 49/14 (Egypt et al.), containing amendments to the draft MSC-FAL circular approved by MSC 109.

14.6 A thorough discussion was had, where some delegations supported the proposal in document FAL 49/14, but other delegations expressed the view that the proposal affected the responsibilities of flag States and RCC in SAR operations enshrined in SOLAS and SAR Conventions and were of the opinion that the FAL Committee was not the competent IMO organ on this matter.

14.7 Therefore, the Committee agreed to inform MSC of the discussion, and invited MSC to consider the new proposed amendment to the MSC-FAL circular on guidelines on the recovery of deceased persons and on death after recovery approved by MSC 109.

## 15 CONSIDERATION AND ANALYSIS OF REPORTS AND INFORMATION ON PERSONS RESCUED AT SEA AND STOWAWAYS

**Consideration and analysis of reports and information on stowaways**

15.1 The Committee noted that, in 2024, 45 stowaway cases had been reported to the Organization and the number of stowaways reported was 92.

15.2 In terms of numbers of stowaways, the cases reported to the Organization are set out in the following table:

| Year | 2014 | 2015 | 2016 | 2017 | 2018 | 2019 | 2020 | 2021 | 2022 | 2023 | 2024 |
|---|---|---|---|---|---|---|---|---|---|---|---|
| Number of incidents | 61 | 28 | 55 | 63 | 48 | 55 | 54 | 50 | 64 | 62 | 45 |
| Number of stowaways | 120 | 80 | 163 | 157 | 182 | 138 | 55 | 96 | 131 | 161 | 92 |

15.3 The Committee, having recalled the information provided by the International Group of P&I Clubs on their statistics on stowaway incidents to previous sessions of the Committee, considered the information provided by the International Group of P&I Clubs for the 2023/2024 policy year to FAL 49. A summary of the statistics provided by the International Group of P&I Clubs to the FAL Committee so far is set out below:

| Data-collection exercises analysed data | 2007/ 2008 | 2011/ 2012 | 2014/ 2015 | 2017/ 2018 | 2018/ 2019 | 2019/ 2020 | 2020/ 2021 | 2021/ 2022 | 2022/ 2023 | 2023/ 2024 |
|---|---|---|---|---|---|---|---|---|---|---|
| No of incidents | 842 | 774 | 503 | 432 | 364 | 418 | 364 | 345 | 277 | 277 |
| No of stowaways | 1,955 | 1,640 | 1,274 | 1,420 | 919 | 1,234 | 1,050 | 892 | 626 | 770 |
| Total cost (US$ million) | 14.3 | 15.3 | 9.3 | 9.5 | 8.0 | 7.8 | 8.9 | 5.9 | 7.8 | 7.2 |
| Cost/incident (US$ thousand) | 17.0 | 19.8 | 18.5 | 22.0 | 22.0 | 18.6 | 24.4 | 17.1 | 28.1 | 26.0 |
| Cost/stowaway (US$ thousand) | 7.3 | 9.3 | 7.3 | 6.7 | 8.7 | 6.3 | 8.4 | 6.6 | 12.4 | 9.4 |

15.4 The Committee expressed appreciation to the International Group of P&I Clubs for its continuous support in the discussions with the provision of the statistics of stowaway incidents and invited the International Group of P&I Clubs to present statistics to FAL 50.

15.5 The observer delegation of WSC informed the Committee that its members had reported an increase in the number of stowaway incidents, with significant problems for their repatriation, a trend not reflected in the data provided by the International Group of P&I Clubs.

15.6 The observer delegation of BIMCO stated the difficulties associated with stowaway incidents due to insufficient implementation of the *Revised guidelines on the prevention of access by stowaways and the allocation of responsibilities to seek the successful resolution of stowaway cases* by port States.

15.7 The Committee recalled resolution A.1074(28) on *Notification and circulation through the Global Integrated Shipping Information System (GISIS)* and urged Member States and international organizations to provide timely and accurate information on stowaway cases to the Organization, making use of the GISIS module[7] in accordance with Standard 4.7.1 of the FAL Convention.

***Consideration and analysis of reports and information on persons rescued at sea***

15.8 The Committee noted that, since the date of the launch of the Inter-agency platform for information-sharing on migrant smuggling by sea in GISIS[8] on 6 July 2015, only 44 incidents had been entered in the database.

15.9 Having noted the low level of reporting of migrant incidents at sea and on suspected smugglers and vessels, as requested by the *Interim measures for combating unsafe practices associated with the trafficking, smuggling or transport of migrants by sea* (MSC.1/Circ.896/Rev.2), the Committee encouraged Member States to provide and update the information included in the appendix via the Inter-agency platform for information-sharing on migrant smuggling by sea in GISIS.

## 16 TECHNICAL COOPERATION ACTIVITIES RELATED TO FACILITATION OF MARITIME TRAFFIC

16.1 The Committee noted the activities relevant to the implementation of the FAL Convention, conducted under the Integrated Technical Cooperation Programme (ITCP) for the period December 2023 to December 2024, included in document FAL 49/16/1 (Secretariat).

16.2 The Committee urged Member States and the maritime industry to contribute to the Organization's technical cooperation activities.

**Proposed thematic priorities of the ITCP for the 2026/2027 biennium**

16.3 The Committee recalled that FAL 47 had approved thematic priorities for the ITCP in relation to FAL matters for the 2024/2025 biennium. Subsequently, the Technical Cooperation Committee, at its seventy-third session in 2023, approved the ITCP for 2024/2025, which was based on the thematic priorities agreed by the committees and the corresponding needs of developing countries.

16.4 The Committee considered the proposed thematic priorities for the 2026-2027 biennium for providing technical assistance and capacity-building (FAL 49/16, annex), keeping the four thematic priorities approved by FAL 47, with the necessary update to include resolution FAL.17(48) on *Revised guidelines for the prevention and suppression of the smuggling of wildlife on ships engaged in international maritime traffic*.

16.5 The Committee approved the selected thematic priorities for the ITCP for the 2026- 2027 biennium, as set out in annex 9, and requested the Secretariat to forward them to the Technical Cooperation Committee.

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7 Refer *to Global Integrated Shipping Information System (GISIS) – FAL module database (FALD) and Contact Addresses for FAL Database* (CAFALD) (Circular Letter No.3281).

8 Refer to *Global Integrated Shipping Information System (GISIS) – Inter-agency platform for information-sharing on migrant smuggling by sea* (Circular Letter No.3569).

## 17 RELATIONS WITH OTHER ORGANIZATIONS

17.1 In considering document FAL 49/17 (Secretariat), the Committee noted the relevant decisions of C 132 and C 133 with regard to relations with non-governmental organizations, applications for consultative status and related matters.

## 18 APPLICATION OF THE COMMITTEE'S PROCEDURES ON ORGANIZATION AND METHOD OF WORK

18.1 The Committee recalled that FAL 48 had approved the amendments to *Organization and method of work of the Facilitation Committee* (FAL.3/Circ.217/Rev.2), including the Meeting Document Submission Portal and reference to resolution A.1174(33) on *Application of the Strategic Plan of the Organization*.

18.2 The Committee noted that:

.1 LEG 111 had approved the replacement of the reference to resolution A.1111(30) with resolution A.1174(33) in *Organization and method of work of the Legal Committee*;

.2 MSC 108 had agreed:

.1 amendments to annexes 1 and 2 to the Committees' method of work regarding the assessment of capacity-building implications of proposals for new outputs or when developing new, or amending existing, mandatory instruments;

.2 a policy for consideration and approval of unified interpretations for inclusion in the revised version of the Committees' method of work at MSC 109;

.3 to communicate these decisions to other committees that also approved unified interpretations (UIs) and invited MEPC to take concurrent decisions with a view to having a harmonized policy on UIs regarding the planned amendments to the Committees' method of work expected to be approved by MSC 109; and

.4 to issue the revised version of the Committees' method of work (MSC-MEPC.1/Circ.5/Rev.6), following consideration of the outcome of the considerations by the Working Group on Workload of the Committee by MSC 109, and subject to the concurrent approval of the amendments by MEPC 83.

.3 MEPC 82 had agreed to consider the draft revised Committees' method of work, to be finalized by MSC 109, with a view to concurrent approval;

.4 C 133 had approved amendments to the Organization and method of work of the Council, including matters related to the arrangement of correspondence groups and remote participation in working or drafting groups; and

.5 MSC 109 had approved the draft revision of the Committees' method of work, containing amendments related to:

.1 measures to address the workload of the Committees and their subsidiary bodies;

.2 procedures to facilitate the assessment of capacity-building implications of new or amended mandatory instruments, as revised by the Working Group;

.3 safeguards and the decision-making process to be followed during consideration and approval of unified interpretations; and

.4 general improvements,

to be disseminated as MSC-MEPC.1/Circ.5/Rev.6, subject to concurrent approval by MEPC 83.

18.3 The Committee considered documents FAL 49/18 (Secretariat), with a revised version of the Committee's method of work (FAL.3/Circ.217/Rev.2), aligned with the revised MSC/MEPC Committees' method of work approved by MSC 109, and FAL 49/18/1 (United Arab Emirates), commenting on document FAL 49/18, to accommodate hybrid meeting capabilities in the Organization and method of work of the Facilitation Committee, in line with the decisions of C 133 as set out in Council.1/Circ.2, particularly to take into account the differences in time zones and to include references to Circular Letter No.4627.

18.4 The Committee, having agreed to the proposal on paragraph 5.5 contained in document FAL 49/18/1, further agreed to add one sentence to this paragraph to provide flexibility to the working and drafting groups of the Committee to complete their assignments, bearing in mind that hybrid capacity was supplementary to the in-person meetings, and thus the conduct of hybrid meetings should not hinder any normal conduct used to operate efficiently at in-person meetings.

18.5 Subsequently, the Committee approved the amendments to the Organization and method of work of the Facilitation Committee (FAL.3/Circ.217/Rev.2), and requested the Secretariat to issue the revised method of work as FAL.8/Circ.1.

## 19 WORK PROGRAMME

### Proposals for new outputs

#### *Proposal of a new output to revise the Revised guidelines on the prevention of access by stowaways and the allocation of responsibilities to seek the successful resolution of stowaway cases*

19.1 The Committee considered document FAL 49/19 (Malaysia et al.) proposing to update the *Revised guidelines on the prevention of access by stowaways and the allocation of responsibilities to seek the successful resolution of stowaway cases*, to align with the amendments to the annex to the FAL Convention, adopted by resolution FAL.14(46).

19.2 The observer delegation of WSC, supported by the observer delegations of BIMCO, ICS and ICHCA, expressed the need to review and if necessary, revise the Revised guidelines holistically, in view of any issues regarding the existing practical implementation of the provisions relating to stowaways.

19.3 The Committee agreed to include, in the 2026-2027 biennial agenda of the FAL Committee and the provisional agenda for FAL 50, an output on "Development of amendments to the *Revised guidelines on the prevention of access by stowaways and the allocation of responsibilities to seek the successful resolution of stowaway cases* (resolutions FAL.13(42) and MSC.448(99))", with a target completion year of 2027, and invite MSC to become an associated organ.

***Proposal of a new output to amend the annex to the FAL Convention for safeguarding maritime single windows by introducing the mandatory requirement to implement cybersecurity measures***

19.4 The Committee considered document FAL 49/19/1 (Bangladesh et al.) proposing to include in the FAL Convention a mandatory requirement to implement cybersecurity measures to safeguard the maritime single window.

19.5 The Committee noted the following views:

.1 the annex to the FAL Convention should be amended to provide a structured yet flexible approach setting clear cybersecurity principles while allowing Member States to implement measures to fit into national frameworks; and

.2 specific measures on how to implement the measures to ensure cybersecurity should be determined by each country according to its own circumstances.

19.6 Following consideration of the proposal, the Committee agreed to include, in the 2026-2027 biennial agenda of the FAL Committee and the provisional agenda for FAL 50, an output on "Amendments to the FAL Convention to introduce mandatory cybersecurity measures to safeguard the maritime single windows", with a target completion year of 2026.

**Endorsement of new outputs**

19.7 In accordance with the relevant provisions of the *Application of the Strategic Plan of the Organization* (resolution A.1174(33)), the Committee invited the Council to note that the following two new outputs had been included in the biennial agenda for 2026-2027:

.1 Development of amendments to the *Revised guidelines on the prevention of access by stowaways and the allocation of responsibilities to seek the successful resolution of stowaway cases* (resolutions FAL.13(42) and MSC.448(99)) (see paragraph 19.3).

.2 Amendments to the FAL Convention to introduce mandatory cybersecurity measures to safeguard the maritime single windows (see paragraph 19.6).

**Biennial status report of the Facilitation Committee**

19.8 The Committee concurred with the decision of MSC 109 to change the type of output number 7.6, Consideration and analysis of reports and information on persons rescued at sea and stowaways, from "annual" to "continuous".

19.9 The Committee agreed to consider at FAL 50 the possibility of amending the description of the output "Application of single window concept" because it was advisable after the entering into force of the amendments to the annex to the FAL Convention and the obligation to establish MSW from 1 January 2024. In support of this decision, the Committee agreed that this output should be comprised of SMART indicators, milestones and completion targets to serve as performance indicators, in accordance with the strategy policy of the Organization, and for the purpose of providing technical assistance to Member States in an efficient way.

19.10 The Committee instructed the Secretariat to submit proposals to FAL 50, on the agenda item on "Application of single window concept", to provide input on improving this output, its indicators and timeline. The Committee also invited Member States and international organizations to submit proposals on this matter.

19.11 The Committee endorsed the status of outputs for the 2024-2025 biennium which had been prepared by the Secretariat in consultation with the Chair, and accordingly invited C 134 to note the report on the status of outputs of the Facilitation Committee, as set out in annex 10.

**Outputs of the Facilitation Committee for the 2026-2027 biennium**

19.12 The Committee approved the outputs of the Committee for the 2026-2027 biennium, as set out in annex 11, for submission to C 134 for endorsement.

**Post-biennial agenda of the Committee**

19.13 The Committee endorsed the status of outputs accepted for inclusion in the post-biennial agenda, which had been prepared by the Secretariat in consultation with the Chair, and accordingly invited C 134 to note its post-biennial agenda, as set out in annex 12.

**Intersessional meetings**

19.14 The Committee recalled that FAL 48 had approved the holding of the following intersessional meetings in 2025 which had been endorsed by C 132:

.1 the twelfth meeting of EGDH to be held immediately after FAL 49; and

.2 the thirteenth meeting of EGDH to be held in the second half of 2025;

and noted that EGDH 13 had been scheduled to take place from 15 to 19 September 2025.

19.15 In addition, the Committee approved the following intersessional meetings of the Expert Group on Data Harmonization to be held in 2026, one of them immediately after FAL 50, if possible, subject to endorsement by C 134:

.1 the fourteenth meeting of EGDH to be held in the first half of 2026; and

.2 the fifteenth meeting of EGDH, to be held in the second half of 2026.

**Substantive items for inclusion in the agenda of FAL 50**

19.16 Having considered the proposals in document FAL 49/WP.3, the Committee agreed to the substantive items to be included in the agenda of its fiftieth session, as set out in annex 13. In this connection, the Committee also agreed that all Secretariat documents for every session of the Committee in future would be made publicly available prior to the meeting (see also paragraph 2.17).

**Establishment of working and drafting groups at FAL 50**

19.17 The Committee agreed that, based on the decisions taken under various agenda items, working and drafting groups on the following subjects could be established at FAL 50:

.1 electronic business;

.2 facilitation instruments;

.3 other facilitation subjects;

.4 strategy on maritime digitalization; and

.5 amendments to the annex to the FAL Convention.

19.18 The Committee further agreed that, should the need arise, FAL 50 could consider establishing any other working or drafting groups when considering the various agenda items and requested the Secretariat, in consultation with the Chair, to prepare and circulate well in time before the meeting the provisional timetable for FAL 50 and a list of the likely working or drafting groups to be established.

**Date and venue of the next session**

19.19 The Committee noted that FAL 50 was scheduled to take place from 23 to 27 March 2026, at IMO Headquarters in London.

## 20 ELECTION OF CHAIR AND VICE-CHAIR FOR 2026

20.1 In accordance with its Rules of Procedure, the Committee unanimously elected Mr. Watchara Chiemanukulkit (Thailand) as Chair and Mr. Mohamed AlKaabi (United Arab Emirates) as Vice-Chair, both for 2026.

## 21 ANY OTHER BUSINESS

**IMO membership status in the WCO-hosted Advance Passenger Information and Booking and Reservation Information or Passenger Name Record (API and BRI/PNR) Contact Committee**

21.1 The Committee considered document FAL 49/21 (WCO) proposing to approve IMO membership in the "API and BRI/PNR Contact Committee" organized by WCO as a "partner", a committee organized by WCO for many years in which ICAO and WCO intended to extend the consideration of API and BRI/PNR from the air mode of transport to maritime transport. The proposed terms of reference of the Contact Committee are set out in the annex to the document.

21.2 WCO informed that the API and BRI/PNR Contact Committee did not impose financial or technological obligations on its members, and that the main functions were:

.1 enabling discussion;

.2 decision-making and development;

.3 maintenance;

.4 promotion of the implementation of international instruments and tools on all traveller controls including passenger and crew; and related facilitation matters; and

while the Contact Committee's recommendations might encourage improvements in national data-collection and processing systems, any decision to update infrastructure or implement new measures with specific technological solutions remained at the discretion of each country.

21.3 The Committee noted, inter alia, the following general views:

.1 IMO's partnership status in the API and BRI/PNR Contact Committee would further facilitate cooperation between organizations and integrate maritime expertise into the decision-making process of WCO, ensuring consistency and harmonization across global standards in multiple modes of transport, benefiting both authorities and the shipping industry;

.2 IMO's partnership status in the API and BRI/PNR Contact Committee would ensure that maritime passenger data aligned with global security frameworks;

.3 the expansion of the Contact Committee's scope to include all modes of international transport, including maritime, represented an important step in aligning global standards for passenger data collection, security screening, and border management; and

.4 given the success of API-PNR programs in the aviation sector, similar data-sharing frameworks would significantly benefit cruise ships and other maritime passenger transport services.

21.4 The Committee, following overwhelming support, agreed to recommended to the Council to approve the membership of IMO in the Contact Committee.

21.5 In respect of the terms of reference of the Contact Committee contained in the annex to document FAL 49/21, the Committee noted some comments regarding the need for further review of the terms of reference to better reflect the Organization's role. The Committee also recommended that the Council, while considering the recommendation to approve the membership of IMO in the Contact Committee, should consider these terms of reference (see paragraph 21.6) for finalization with WCO and ICAO.

21.6 The Committee was informed by the Secretary-General that the Legal Division was analysing the invitation of WCO and the outcome would be submitted to the Council for its consideration.

**China's On-time and Cost-efficient Container Shipping Project**

21.7 The Committee noted document FAL 49/INF.5 (China) providing information on the practice of China in the On-time and Cost-efficient Container Shipping Project, which sought to optimize vessel traffic organization along major maritime traffic routes.

**Improving data exchange between ports and hydrographic offices**

21.8 The Committee noted document FAL 49/INF.6 (IHMA) introducing the Guidelines for Harmonized Communication and Electronic Exchange of Nautical Data for Port Calls, to support Hydrographic Offices and Port Authorities to discharge their collective responsibilities as per SOLAS chapter V, regulation 9.

## 22 CONSIDERATION OF THE REPORT OF THE COMMITTEE ON ITS FORTY-NINTH SESSION

**Procedures for facilitating remote sessions**

22.1 The draft report of the session (FAL 49/WP.1) was prepared by the Secretariat for consideration by the Committee.

22.2 In this context, during the meeting held on Friday, 14 March 2025, delegations were given an opportunity to provide comments on the draft report (FAL 49/WP.1), and the Secretariat then prepared the revised draft report (FAL 49/WP.1/Rev.1), incorporating the comments made. Member States and international organizations wishing to provide further editorial corrections and improvements, including finalizing individual statements, were given a deadline of Wednesday, 25 March 2025, 23.59 (UTC) to do so by correspondence in accordance with paragraphs 4.27 and 4.28 of the Committees' method of work (FAL.3/Circ.217/Rev.2).

**Action requested of other IMO organs**

22.3 The Assembly, at its thirty-fourth session, is invited to:

.1 note the approval of revised Rules of Procedure of the FAL Committee (paragraph 2.13 and annex 1);

.2 note the action taken on matters related to the IMO Strategy on Maritime Digitalization (section 8 and annex 5)

.3 note the action taken on matters related to MASS (section 11 and annex 7); and

.4 note that the Committee adopted resolution FAL.18(49) on *Guidelines on minimum training and education for mooring personnel related to ship/port interface* (paragraph 13.4 and annex 8).

22.4 The Council, at its 134th session, is invited to:

.1 consider the report of the forty-ninth session of the Facilitation Committee and, in accordance with Article 21(b) of the IMO Convention, transmit it, with its comments and recommendations, to the thirty-fourth session of the Assembly;

.2 note the decisions taken regarding measures for greater public access to information (paragraphs 2.17 and 19.16);

.3 note the approval of the revised Rules of Procedure of the FAL Committee, with the invitation to the committees to harmonize their relevant rules on "Members present and voting" and "Members present" (paragraphs 2.13 and 2.15, and annex 1);

.4 revise rule 40 of the Rules of Procedure of the Council to take into account the decision on rule 37 of the Rules of Procedure of the Facilitation Committee and the discussion reflected in paragraph 2.12 (paragraph 2.14);

.5 note the approval of the amendments to the annex to the FAL Convention for circulation in accordance with article VII(2)(a) of the Convention with a view to adoption at FAL 50 (paragraph 5.8 and annex 2);

.6 note the developments regarding the IMO Compendium on Facilitation and Electronic Business, including the approval of a revised version (section 7);

.7 note the decisions taken on the IMO Strategy on Maritime Digitalization and the draft work plan for its development (section 8 and annex 5);

.8 note the decisions taken on matters related to MASS (section 11 and annex 7);

.9 note that the Committee adopted resolution FAL.18(49) on *Guidelines on minimum training and education for mooring personnel related to ship/port interface* (paragraph 13.4 and annex 8);

.10 note the approval of amendments to the Organization and method of work of the Facilitation Committee, to accommodate hybrid meeting capabilities, in line with the decisions of C 133, and to provide flexibility to the working and drafting groups of the Committee to complete their assignments (paragraphs 18.3 to 18.5);

.11 endorse the new outputs approved by the Committee for the 2026-2027 biennium (paragraph 19.7);

.12 note the status report of the outputs for the 2024-2025 biennium (paragraph 19.11 and annex 10);

.13 endorse the outputs approved by the Committee for the 2026-2027 biennium (paragraph 19.12 and annex 11);

.14 note the post-biennial agenda of the Committee (paragraph 19.13 and annex 12);

.15 endorse the intersessional meetings of EGDH approved by the Committee for 2026 (paragraph 19.15);

.16 consider the recommendation of the FAL Committee to approve the membership of IMO in the WCO-hosted API and BRI/PNR Contact Committee (paragraphs 21.1 to 21.4);

.17 consider the terms of reference of the Contact Committee contained in the annex to document FAL 49/21, for finalization with WCO and ICAO (paragraph 21.5); and

.18 note the approval of the following circulars:

.1 FAL.6/Circ.14/Rev.2 on *List of publications relevant to the ship/port interface* (paragraph 2.4);

.2 FAL.5/Circ.42/Rev.4 on *Guidelines for setting up a maritime single window* (paragraph 6.9);

.3 FAL.5/Circ.55 on *IMO Compendium on Facilitation and Electronic Business* (paragraph 7.28);

.4 FAL-LEG-MEPC-MSC.1/Circ.1 on *Guidelines for the use of electronic certificates* (paragraph 9.5);

.5 MSC-FAL.1/Circ.3/Rev.3 on *Guidelines on maritime cyber risk management* (paragraph 10.4);

.6 FAL.8/Circ.1 on *Organization and method of work of the Facilitation Committee* (paragraph 18.5); and

.7 FAL.3/Circ.222 on *Rules of Procedure of the Facilitation Committee* (FAL 49/22, paragraph 2.13)

22.5 The Maritime Safety Committee, at its 110th session, is invited to note the report of the Committee and, in particular, to:

.1 note the approval of the revised Rules of Procedure of the FAL Committee, with the invitation to the committees to harmonize their relevant rules on "Members present and voting" and "Members present" (paragraphs 2.13 and 2.15, and annex 1);

.2 note the discussions on the amendments to the annex to the FAL Convention to introduce mandatory reporting of the API and BNR (section 4);

.3 note the approval of a revised version of the IMO Compendium on Facilitation and Electronic Business (section 7);

.4 note the decisions taken on the IMO strategy on maritime digitalization and the draft work plan for its development (section 8), in particular to:

.1 note that the FAL Committee agreed to name the strategy as "IMO Strategy on Maritime Digitalization" (paragraph 8.4.1);

.2 invite MSC to encourage Member States and international organizations to join the Correspondence Group on the development of the IMO Strategy on Maritime Digitalization, to ensure the involvement of all the organizations at an early stage in the elaboration of the IMO digitalization strategy (paragraph 8.4.4);

.3 note the view of the FAL Committee that the development of the strategy should rely on Member States and international organizations providing to the FAL Committee their input to the strategy from all perspectives including the safety and environmental protection perspectives (paragraph 8.7); and

.4 note the draft work plan for the development of the IMO Strategy on Maritime Digitalization approved by the FAL Committee (paragraph 8.9 and annex 5);

.5 consider the *Guidelines for the use of electronic certificates (*FAL-LEG-MEPC-MSC.1/Circ.1), for concurrent approval (paragraph 9.5 and annex 6);

.6 note that the FAL Committee concurrently approved the revised *Guidelines on maritime cyber risk management* (MSC-FAL.1/Circ.3/Rev.3) (paragraph 10.4);

.7 note that the FAL Committee invited Member States and international organizations to submit proposals on the next steps to enhance maritime cybersecurity for consideration at the next session, and extended the target completion of the output to 2026 (paragraph 10.5);

.8 note that the FAL Committee agreed not to discuss a new reporting declaration for MASS before the completion of the non-mandatory MASS Code (paragraph 11.6);

.9 note that the FAL Committee approved the revised road map on addressing MASS issues related to the FAL Convention (paragraph 11.9 and annex 7);

.10 encourage Member States and international organizations to join the Correspondence Group on the Revised guidelines for the prevention and suppression of the smuggling of drugs, psychotropic substances and precursor chemicals on ships engaged in international maritime traffic (resolutions FAL.9(34) and MSC.228(82)) (paragraph 12.7);

.11 note that the Committee adopted resolution FAL.18(49) on *Guidelines on minimum training and education for mooring personnel related to ship/port interface* (paragraph 13.4 and annex 8);

.12 note that, having considered document FAL 49/14 with a proposal to amend the MSC-FAL circular, approved by MSC 109, that would affect the responsibilities of flag States and RCC in SAR operations, the FAL Committee recognized that it was not the competent IMO organ on this matter and invited MSC to consider it (paragraphs 14.5 to 14.7);

.13 note the approval of amendments to the Organization and method of work of the Facilitation Committee, to accommodate hybrid meeting capabilities, in line with the decisions of C 133, and to provide flexibility to the working and drafting groups of the Committee to complete their assignments (paragraphs 18.3 to 18.5);

.14 note the approval of a new output on "Development of amendments to the *Revised guidelines on the prevention of access by stowaways and the allocation of responsibilities to seek the successful resolution of stowaway cases* (resolutions FAL.13(42) and MSC.448(99))", and consider becoming an associated organ to this output (paragraph 19.3); and

.15 note the approval of a new output on "Amendments to the FAL Convention to introduce mandatory cybersecurity measures to safeguard the maritime single windows" (paragraph 19.6).

22.6 The Marine Environment Protection Committee, at its eighty-third session, is invited to note the report of the Committee and, in particular, to:

.1 note the approval of the revised Rules of Procedure of the FAL Committee, with the invitation to the committees to harmonize their relevant rules on "Members present and voting" and "Members present" (paragraphs 2.13 and 2.15, and annex 1);

.2 note the approval of a revised version of the IMO Compendium on Facilitation and Electronic Business (section 7);

.3 note the decisions taken on the IMO Strategy on Maritime Digitalization and the draft work plan for its development (section 8), in particular to:

.1 note that the FAL Committee agreed to name the strategy as "IMO Strategy on Maritime Digitalization" (paragraph 8.4.1);

.2 invite MEPC to encourage Member States and international organizations to join the Correspondence Group on the Development of the IMO Strategy on Maritime Digitalization, to ensure the involvement of all the organizations at an early stage in the elaboration of the IMO digitalization strategy (paragraph 8.4.4);

.3 note the view of the FAL Committee that the development of the strategy should rely on Member States and international organizations providing to the FAL Committee their input to the strategy from all perspectives including the safety and environmental protection perspectives (paragraph 8.7); and

.4 note the draft work plan for the development of the IMO Strategy on Maritime Digitalization approved by the FAL Committee (paragraph 8.9 and annex 5);

.4 consider the *Guidelines for the use of electronic certificates (*FAL-LEG-MEPC-MSC.1/Circ.1), for concurrent approval (paragraph 9.5 and annex 6);

.5 note that the FAL Committee agreed not to discuss a new reporting declaration for MASS before the completion of the non-mandatory MASS Code (paragraph 11.6);

.6 note that the FAL Committee approved the revised road map on addressing MASS issues related to the FAL Convention (paragraph 11.9 and annex 7); and

.7 note the approval of amendments to the Organization and method of work of the Facilitation Committee, to accommodate hybrid meeting capabilities, in line with the decisions of C 133, and to provide flexibility to the working and drafting groups of the Committee to complete their assignments (paragraphs 18.3 to 18.5).

22.7 The Technical Cooperation Committee, at its seventy-fifth session, is invited to note the report of the Committee and, in particular, to:

.1 note the approval of the revised Rules of Procedure of the FAL Committee, with the invitation to the committees to harmonize their relevant rules on "Members present and voting" and "Members present" (paragraphs 2.13 and 2.15, and annex 1);

.2 note the technical cooperation initiatives implemented on FAL matters during 2024 (paragraphs 16.1 and 16.2);

.3 consider the FAL-related selected thematic priorities for ITCP for the 2026- 2027 biennium (paragraph 16.5 and annex 9); and

.4 note the approval of amendments to the Organization and method of work of the Facilitation Committee, to accommodate hybrid meeting capabilities, in line with the decisions of C 133, and to provide flexibility to the working and drafting groups of the Committee to complete their assignments (paragraphs 18.3 to 18.5).

22.8 The Legal Committee, at its 112th session, is invited to note the report of the Committee and, in particular, to:

.1 note the approval of the revised Rules of Procedure of the FAL Committee, with the invitation to the committees to harmonize their relevant rules on "Members present and voting" and "Members present" (paragraphs 2.13 and 2.15, and annex 1);

.2 note the decisions taken on the IMO strategy on maritime digitalization and the draft work plan for its development (section 8), in particular to:

.1 note that the FAL Committee agreed to name the strategy as "IMO Strategy on Maritime Digitalization" (paragraph 8.4.1);

.2 note the view of the FAL Committee that the development of the strategy should rely on Member States and international organizations providing to the FAL Committee their input to the strategy from all perspectives including the safety and environmental protection perspectives (paragraph 8.7); and

.3 note the draft work plan for the development of the IMO Strategy on Maritime Digitalization approved by the FAL Committee (paragraph 8.9 and annex 5);

.3 consider the *Guidelines for the use of electronic certificates (*FAL-LEG-MEPC-MSC.1/Circ.1), for concurrent approval (paragraph 9.5 and annex 6);

.4 note that the FAL Committee agreed not to discuss a new reporting declaration for MASS before the completion of the non-mandatory MASS Code (paragraph 11.6);

.5 note that the FAL Committee approved the revised road map on addressing MASS issues related to the FAL Convention (paragraph 11.9 and annex 7); and

.6 note the approval of amendments to the Organization and method of work of the Facilitation Committee, to accommodate hybrid meeting capabilities, in line with the decisions of C 133, and to provide flexibility to the working and drafting groups of the Committee to complete their assignments (paragraphs 18.3 to 18.5).

*(The annexes will be issued as an addendum to this report.)*

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